

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK**

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**DIANE C. DESOUSA, and DIANE C. DESOUSA
AS EXECUTOR OF THE ESTATE OF
THOMAS E. DESOUSA,**

Plaintiffs,

-against-

**RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,**

Defendants.

Index No: 600371/2021

**ATTORNEY
AFFIRMATION IN
REPLY**

-----X
JASON M. BARBARA, an attorney duly licensed to practice before the Courts of this State, hereby affirms the truth of the following under the penalties of perjury:

1. I am the attorney for the Defendant **RICHARD A. CALVAGNO II**, in the above captioned action and as such, I am fully familiar with all the facts of this matter. I submit this Affirmation in Reply to Plaintiffs' Opposition to Defendant's Motion for summary judgment.

2. As my appreciated adversary so notes, these arguments have all been raised before in the original Motion cycles submitted prior to Mr. DeSOUSA's unfortunate passing (which Motions were dismissed without prejudice¹ to their renewal pending the appointment of Mrs. DeSOUSA as Executor of the Estate.) Having thus had the benefit

¹ Annexed hereto as "EXHIBIT A" are this Court's Orders dismissing Defendant's Motion for summary judgment as well as the Plaintiff's subsequent Motion for summary judgment that, in the interests of judicial economy, might have been more effectively commenced as a Cross Motion.

of analyzing the Reply originally submitted on the first Motion, Plaintiff's underlying Opposition is really a "SUR-REPLY" to the papers submitted on the dismissed Motion.

3. Counsel nevertheless begins this second "Affirmation in Opposition" to the renewed Motion questioning allegations raised in the original Affirmation submitted in support of the earlier Motion for summary judgment.² Specifically, and with incomplete quotes from ¶2 of that Affirmation, in ¶5 of his underlying opposition, counsel concludes my comments about a "personal squabble" and Plaintiff's intolerance of Defendant's gay lifestyle as "irreconcilable." Ignoring the undeniable fact that Plaintiffs' intolerance of Defendant's gay lifestyle is a "personal squabble," counsel's mischaracterized conclusions similarly misreport the quote which, read in its entirety, recites:

"2. Concealing Plaintiff THOMAS E. DESOUSA's discriminatory prejudices under legal theories alleging "nuisance" and "intentional infliction of emotional distress," this notably unproven, unsupported, and defective³ complaint results from nothing more than personal squabbles between quarreling neighbors, documented and proven as such in:

4. While Plaintiffs devote an extraordinary effort to disprove the discriminatory motives of their action, the fact remains that following the completion of discovery and presentation of proof from Defendant that no material issues of fact exist on the causes of action pled, the Plaintiffs have still failed to present the existence of any material issue of triable fact on their Complaint's underlying causes of action.

""[T]he proponent of a summary judgment motion must make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact" (*Alvarez*

² Annexed hereto as "EXHIBIT B" is a copy of the Affirmation in Support (MS#4)

³ In Defendant's Verified Answer and again at depositions, Defendants advised the Plaintiffs of their Complaint's fatal procedural defect in ¶4, mistakenly identifying themselves (as opposed to Defendants) of the owners of the herein complained of property.

v. Prospect Hosp., 68 N.Y.2d 320, 324, 508 N.Y.S.2d 923, 501 N.E.2d 572; *Winegrad v. New York Univ. Med. Ctr.*, 64 N.Y.2d 851, 853, 487 N.Y.S.2d 316, 476 N.E.2d 642; *see Zuckerman v. City of New York*, 49 N.Y.2d 557, 562, 427 N.Y.S.2d 595, 404 N.E.2d 718). ... **“Once this showing has been made, however, the burden shifts to the party opposing the motion for summary judgment to produce evidentiary proof in admissible form sufficient to establish the existence of material issues of fact which require a trial of the action”** (*Alvarez v. Prospect Hosp.*, 68 N.Y.2d at 324, 508 N.Y.S.2d 923, 501 N.E.2d 572; *see Zuckerman v. City of New York*, 49 N.Y.2d at 562, 427 N.Y.S.2d 595, 404 N.E.2d 718).” *Ayers v City of Mount Vernon*, 176 AD3d 766, 769 [2d Dept 2019]
Emphasis added.

REPLY TO DEFENDANT’S OPPOSITION

POINT ONE:

Plaintiff’s Defective Pleadings

5. As repeatedly addressed in Defendant’s Verified Answer, again at court conferences and finally, even at deposition, Plaintiff’s complaint mistakenly pleads in ¶4 that:

“Upon information and belief... Plaintiffs were and are the fee owners and residents of ... 320 Grand Central Avenue” i.e. property titled to the Defendants, NOT Plaintiffs.

6. Again, having had the benefit of a “sur-reply,” Plaintiffs herein argue that the pleadings should be “liberally construed” and that this “typographical error” was *de minimis*.

7. The address and correctly titled owners is not *de minimus* to the accuracy of the Record and your Affirmant again submits that, to create an accurate record of the complained of real property and titled owners, in a dispute surrounding their use and enjoyment of real property, it was incumbent upon the Plaintiffs to correct this error (and

that they have had ample time over the last five (5) years to perform this simple act) especially since it has been repeatedly noted and complained of. *See, Bischof v Gountas-Ortiz*, 59 Misc 3d 1225(A) [Sup Ct 2018].

POINT TWO:
First Cause of Action: Private Nuisance

8. Again, having had the benefit of this “sur-Reply” Plaintiffs insist that they have raised triable issues of fact.

9. They have not.

10. The Complaint’s first cause of action alleges “Private Nuisance.” Your Affirmant takes no exception to Plaintiff’s duplicitous recitation of the already so stated elements of a private nuisance cause of action, but rather I do take exception to counsel’s conclusory statements (eg. ¶18) that the failure of the police to issue any violations is not “a finding of innocence.” As noted in the very case law Plaintiffs cite, when considering a motion for summary judgment the Defendants are not required to convince this Court of their innocence, but rather to demonstrate that the Plaintiff’s have failed to provide any **triable** issue of fact. Plaintiff’s have failed to provide any “triable” issue of fact, admissible police report or emails from third party neighbors that the Plaintiff otherwise offers to prove the existence of a triable issue of fact.

11. The law of this jurisdiction (including the Broxmeyer v. United Cap. Corp., 79 A.D.3d 780, 783 [2d Dep’t 2010] decision cited by Plaintiff, *infra*) has long and consistently held that hearsay and unverified statements like the emails and complaints from neighbors that Plaintiff herein introduces for the first time in opposition, are not

admissible and insufficient to raise a triable issue of fact sufficient to defeat a motion for summary judgment. As noted by Supreme Court Justice **THOMAS F. WHELAN** in Hofer v Harrington, 84 Misc 3d 1213(A) [Sup Ct 2024]

“Yassin, at 66, supra, the Court went on to hold that “even where a police report is properly certified, the hearsay statements of nonparties or unknown sources contained therein may not be admitted for their truth (see Noakes v. Rosa, 54 AD3d 317, 318 [2008]).” In Noakes, supra, the statement in the report as to the defendant “rear-ended” the plaintiff was from an unknown source and since the source was not identifiable, it was error to admit it into evidence.

Hofer v Harrington, 84 Misc 3d 1213(A) [Sup Ct 2024]

See also, Pena v KST Trucking, Inc., 206 AD3d 1007, 1008 [2d Dept 2022] “Since it lacked a certification, the fact that the report arguably contained a party admission from the plaintiff, standing alone, did not make it admissible (*see Yassin v. Blackman*, 188 A.D.3d 62, 65–67, 131 N.Y.S.3d 53). Nor was the uncertified police report otherwise admissible as hearsay evidence in opposition to the motion. The defendants offered no excuse for failing to submit the police report in admissible form and, under the circumstances, the inadmissible report would have provided the sole basis for denying summary judgment (*see Castle v. Bawuah*, 101 A.D.3d 922, 924, 957 N.Y.S.2d 213; *see also Yassin v. Blackman*, 188 A.D.3d at 67, 131 N.Y.S.3d 53).; and Memenza v Cole, 131 AD3d 1020, 1022-23 [2d Dept 2015].

12. As a matter of law, and insofar as the Defendants have proven the Plaintiff’s failure to provide any triable issue of fact in admissible evidentiary form, they have failed to satisfy the burden that shifted to them to defeat Defendant’s Motion for summary judgment.

13. As a matter of fact, Plaintiffs argue that the two parties hosted by the Defendant in the summer of 2020, along with the Defendant's factory issued vehicle constituted nuisances. More specifically, and relating to the car Plaintiff's insist that:

(a) the Defendant's vehicle was in fact MODIFIED (an allegation that was denied and that the Plaintiffs were granted ample opportunity to prove but were unsuccessful in proving despite third party discovery and even depositions⁴); and

(b) that the self performed, unprofessional "decibel readings... reaching as high as 79.9 dB(A), exceeding the limits set by VTL§375(31)(a), VTL§386(3)(b) and Village of Amityville Code§114-3" were ample proof of a triable issue of fact. The photographs of decibel readings Plaintiff performed⁵ are not admissible evidentiary proof sufficient to

⁴ In ¶19 of his Affirmation, counsel pontificates as to the authenticity of a letter prepared by Westbury Jeep (upon which Plaintiffs deposed its author and service director) that stated that the car had not been modified. He suggests that their depositions did not prove that the car had NOT been modified (and refers to page 23 of Exhibit H again misquoting the testimony that only said that he never measured the decibels coming out of an exhaust when completing a NYS safety inspection. Respectfully, it is the burden of the Plaintiff at this juncture to prove that there are triable issues of fact, not supposition. **Plaintiff has completed discovery and been unable to prove the car was modified.**

⁵ In ¶16 of his Affirmation counsel misleadingly refers to Plaintiff's testimony. He annexes "two police reports from Mr. DeSousa" as Exhibit "C" Neither one of the reports cites a finding of excessive noise. Counsel thereafter refers to Mr. DeSousa's testimony to suggest that, upon Plaintiff's complaints, the police "parked up the block to catch Calvagno in the act on at least one occasion as was ticketed" misleading this reader. In fact, Plaintiff admitted that the police did NOT ticket Defendant for excessive noise and testified:

Q. By the way, do you know how many times you called the police?

A. I don't know Once or twice

Q. Did the police take any action?

A. Yes .

Q. What did they do ?

A. They went up the block and waited

Q. And did what?

A. Issued a ticket.

Q. What kind of ticket?

A. I don't know

defeat a motion for summary judgment. All the more importantly, the readings are not even violative of inaccurately cited state and local limits.⁶

14. Despite efforts to the contrary Plaintiffs have failed to provide any **triable** issue of fact.

15. Again, having the opportunity to “sur-reply” counsel summarily dismisses Defendant’s citation to controlling case law and claims that ¶30 “damages for private nuisance is not limited to diminution in market value” and that even though both Plaintiffs unequivocally testified at deposition that they had not seen any physicians prior to the commencement of the action, ¶32 “**whether Plaintiffs saw a doctor on the precise day the Complaint was filed is “irrelevant to whether they sustained damages throughout the course of conduct.”**”? Of course it is relevant, especially since Plaintiffs offered no medical proof of any *link* tying the angered Plaintiff’s reported stress to Defendant’s conduct.

16. Not insignificantly, Plaintiff does not address the, Harris v Miranda, 219 AD3d 1498, 1499 [2d Dept 2023] case cited in support and wherein it was the Plaintiffs who moved for summary judgment on the grounds of private nuisance upon proof of “three instances of excessive noise over the course of approximately three years.”

⁶ While Plaintiffs cite to same:

VTL§375(31)(a) addresses **motorcycle** exhaust devices;

VTL§386(3)(b) entitled Motor vehicle sound level limits” references sound level limits for TABLE I and II “motor vehicle or combination of vehicles with a maximum gross weight in excess of ten thousand pounds...” As logic and good old google confirms, the subject Dodge vehicle, even with all the bells and whistles, is under 5,000 pounds.

TABLE III addresses **motorcycle** driving “based on a sound level measured at, or adjusted to, a distance of fifty feet from the center of the lane in which the **motorcycle** is traveling,” and sets **maximum DBA of 86** (Plaintiff’s highest reading is 79.9); and the

Village of Amityville Code§114-3 prohibits “unreasonable noise” without citing to any decibel reporting or limits

17. Upon the completion of discovery, Plaintiffs herein have of course, failed to prove any instance of excessive noise (or any of the other allegations their complaint alleges “upon information and belief” or otherwise) but the Harris *supra* decision is nonetheless relevant even though summary judgment was denied as the Court specifically stated that **three proven instances of excessive noise** (and again these Plaintiffs have failed to provide any such proof) “**failed to establish “a pattern of continuity or recurrence of objectionable conduct”** (*Domen Holding Co. v. Aranovich*, 1 N.Y.3d at 124, 769 N.Y.S.2d 785, 802 N.E.2d 135 [internal quotation marks omitted]; *see Hutcherson v. Hill*, 161 A.D.3d 495, 495, 76 N.Y.S.3d 50; *Board of Mgrs. of Honto Condominium v. Red Apple Child Dev. Ctr., a Chinese Sch.*, 160 A.D.3d 580, 582, 76 N.Y.S.3d 136; *Duane Reade v. Reva Holding Corp.*, 30 A.D.3d 229, 237, 818 N.Y.S.2d 9), or that the incidents were substantial in nature and unreasonable in character (*see Lewis v. Stiles*, 158 A.D.2d 589, 590, 551 N.Y.S.2d 557).” Emphasis supplied

18. Plaintiffs have failed to present any triable issue of material fact sufficient to sustain the complaint of a Private Nuisance and the cause of action (ironically its own nuisance) must be one and for all dismissed.

POINT THREE:
Second Cause of Action: Public Nuisance

19. The Complaint’s second cause of action pleads “Public Nuisance.” Repeating the previously cited case law that:

“A public nuisance is actionable by a private person only where the person suffered special injury beyond that suffered by the community at large (*see 532 Madison Ave. Gourmet Foods v. Finlandia Ctr.*, 96 N.Y.2d at 292, 727

N.Y.S.2d 49, 750 N.E.2d 1097; *Baity v. General Elec. Co.*, 86 A.D.3d 948, 951, 927 N.Y.S.2d 492).”

Monaghan v R.C. Diocese of Rockville Ctr., 165 AD3d 650, 653 [2d Dept 2018] Emphasis supplied.

In opposition Plaintiffs allege, atty aff ¶36, that “private plaintiffs who suffer special injuries distinct from those of the general community may maintain a private action” citing 532 Madison Ave. Gourmet Foods v. Finlandia Ctr., 96 N.Y.2d 280, 292 (2001); Broxmeyer v. United Cap. Corp., 79 A.D.3d 780, 783 (2d Dep’t 2010).

20. As above noted, **Plaintiff’s complaint fails to plead any damages**, nevertheless “special injuries distinct from those of the community.”

21. In fact, and to the contrary, the Plaintiffs ask this Court to consider the inadmissible annexed emails **from the community** and/or other hearsay reports **from the community**, that disgruntled neighbors may have made to the police. *Plaintiffs can’t suggest they suffered unidentified “special injuries distinct from the community” and then use community complaints of the same injuries to support his complaint.*

22. Plaintiff cites to 532 Madison Ave. Gourmet Foods v. Finlandia Ctr., 96 N.Y.2d 280, 292 (2001); Broxmeyer v. United Cap. Corp., 79 A.D.3d 780, 783 (2d Dep’t 2010) to support his insupportable PUBLIC nuisance claim. Neither case is relevant to the facts at bar. 532 Madison Ave, supra, decided “construction related disasters in midtown Manhattan” where the Plaintiff 24 hour deli was closed for 5 weeks and Plaintiff suffered obvious financial losses. Plaintiff cites the case for its recognition that “A public nuisance is actionable by a private person only if it is shown that the person suffered special injury beyond that suffered by the community at large (see, Burns

Jackson Miller Summit & Spitzer v Lindner, 59 NY2d 314, 334 [citing Restatement (Second) of Torts § 821C, comment b]). This principle recognizes the necessity of guarding against the multiplicity of lawsuits that would follow if everyone were permitted to seek redress for a wrong common to the public (Restatement [Second] of Torts § 821C, comment a; Prosser, Private Action for Public Nuisance, 52 Va L Rev 997, 1007 [1966]).” Plaintiffs notably neglect to tell this Court that even in that circumstance, our Court of Appeals held that the Plaintiff deli did NOT suffer a public nuisance, that the Appellate Division order should be reversed and the Defendant’s Motion to dismiss the complaint granted with costs.

23. Plaintiff’s citation to Broxmeyer v. United Cap. Corp., *supra* is even curious in that (a) Plaintiff’s had not sued on a PUBLIC, but rather a private nuisance and negligence theory; and (b) the Court granted summary judgment dismissing the Plaintiff’s first cause of action alleging that the Defendant’s violated applicable Village Code and noted, much like the Plaintiff’s herein annex in opposition, the hearsay Affidavits of other neighbors, that:

“..the plaintiffs failed to raise a triable issue of fact as to the first cause of action for a judgment declaring that the defendants violated applicable provisions of the Village Code. Although hearsay may be considered in opposition to a motion for summary judgment, it is insufficient to raise a triable issue if it is the only evidence submitted (see Stock v Otis El. Co., 52 AD3d 816, 816-817 [2008]). Here, in support of the allegation that the HVAC units exceeded levels established in the Village Code, the plaintiffs submitted only reports of noise studies which were not in admissible form. Accordingly, the defendants were entitled to summary judgment dismissing the first cause of action and, in effect, declaring that they did not violate section 145.5 of the Village Code.”
Emphasis supplied

Similarly, the only “proof” Plaintiffs offer to sustain their complaints are the unsubstantiated and hearsay allegations of neighbors and inadmissible noise studies that they personally and unprofessionally conducted and that DO NOT EXCEED statutory decibel levels.

24. So too, herein, must Plaintiffs’ second cause of action be properly dismissed as a matter of law. Plaintiffs are barred from maintaining a private cause of action for public nuisance.

POINT FOUR:
Third Cause of Action: Nuisance *Per Se*

25. In Opposition to Defendant’s request to dismiss the third cause of action for nuisance *per se* counsel incorrectly (and contradictorily) concludes that Plaintiffs “established that Defendant Calvagno’s conduct violates state and local law” and is thus a nuisance *per se*.

26. As above established, and even if accurate or admissible, a 79.9 decibel reading does not exceed state or local law

27. To support his insupportable argument, Plaintiff’s cites to a handful of construction cases wherein a contractor was accused of “negligence” or nuisance in the erection of building sites. The cases include State v Fermenta ASC Corp, 238 AD2d 400 [2nd Dept 1997] wherein the Court affirmed a lower Court’s order *dismissing* the causes of action for nuisance *per se* and public nuisance and the 1939 decision of Delaney v Philhern Realty Holding Corp., 280 NY 461, 465-66 [1939], an action for damages arising out of personal injuries due to the alleged fault of the contractor and subcontractor

in claims for negligence and nuisance. The Court of Appeals therein found error in the lower Court's jury charge as to nuisance noting that:

“ When the gravamen of the complaint is nuisance which arises out of negligence, then a jury should be charged that contributory negligence on the part of the plaintiff bars recovery. (*McFarlane v. City of Niagara Falls, supra.*) But where the gravamen of the complaint is an absolute nuisance or a nuisance *per se*, that is a nuisance based on an act which is unlawful even if performed with due care, then a jury should be charged that something more than a mere want of ordinary care on the part of the plaintiff is required to prevent recovery. (*Muller v. McKesson*, 73 N. Y. 195; *Lynch v. McNally*, 73 N. Y. 347.) The act of the plaintiff to prevent recovery must amount to being informed of the dangers in his path and then being willing to encounter them. The principle is comprised within the old maxim, *volenti non fit injuria*, or ‘one will not be heard to complain of results one has invited.’ (*466) *Zurich G. A. & L. Ins. Co. v. Childs Co.*, 253 N. Y. 324, 327; *McFarlane v. City of Niagara Falls, supra*; *Smith v. Baker & Sons*, L. R. [1891] A. C. 325, 360; Harper on the Law of Torts, §§ 153, 193; Bohlen, Studies in the Law of Torts, pp. 514-521.)” *Delaney v Philhern Realty Holding Corp.*, 280 NY 461, 465-66 [1939] Emphasis supplied.

Putting aside the Defendant's beliefs that this nuisance suit, itself a nuisance, borne of Plaintiff's prejudice and hate, the deposition testimony of both parties included complaints of Plaintiff's retaliatory harassment and conduct, yielding the results the Plaintiffs invited and that fail to provide any credible issue of material fact worthy of trial

POINT FIVE:

Fourth Cause of Action: Intentional Infliction of Emotional Distress

28. To spare its summary dismissal, Plaintiff annexes an uncertified and inadmissible 2022 letter from Mr. DeSousa's online psychologist RONALD COHEN whom (after testifying at his May 2023 deposition that he had not seen a doctor prior to

the filing of his Complaint) Plaintiff began seeing on March 14, 2022 **fourteen (14) months *after* he filed the complaint** (presumably, to support his obligation to provide evidentiary proof of severe emotional distress.) Defendant has not been afforded the opportunity to inquire of its author, but on its face this nevertheless uncertified and inadmissible “letter” does not allege the Plaintiff suffers “severe emotional distress” or provide any causal link between the “psychological distress” the letter identifies Plaintiff as suffering, but rather **identifies pre-existing conditions of chronic cardiovascular disease, congestive heart failure and chronic atrial fibrillation that was not caused by the conduct complained of.** Claiming to have so severely suffered by utterly intolerable conduct, Plaintiff concedes that he waited fourteen (14) months AFTER filing his complaint before he ever visited a psychologist whose letter notes that **treatment for Mr. DeSousa’s stress is available with “cognitive behavioral tools” and “self-relaxation solutions.”**

29. With all due respect, the complaint at bar does not plausibly allege all requisite elements of the tort, and the “proof” improperly offered herein, after the completion of discovery, fails to demonstrate that the Defendant’s actions were **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.”**

Even read liberally, the complaint does not plausibly allege these elements. The standard for stating a valid claim of intentional infliction of emotional distress is “rigorous, and difficult to satisfy.” *Howell v. N.Y. Post Co.*, 612 N.E.2d 699, 702 (N.Y. 1993); *see also Ibraheem v. Wackenhut Servs., Inc.*, 29 F. Supp. 3d 196, 215 (E.D.N.Y. 2014) (“In New York, the tort of IIED

is extremely disfavored.”). To succeed, a plaintiff must show that the defendant's actions were **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.”** *Howell*, 612 N.E.2d at 702 (quoting Restatement (Second) of Torts § 46 cmt. d (1965)). Indeed, “[a]ctions likely to be considered reprehensible by most people are not sufficient.” *DiRuzza v. Lanza*, 685 F. App'x 34, 37 (2d Cir. 2017) (applying New York law); *see also Chanko v. Am. Broad. Cos.*, 49 N.E.3d 1171, 1179 (N.Y. 2016) (concluding that a broadcaster's airing of recording of a patient's last moments of life “was not so extreme and outrageous” even though the conduct “would likely be considered reprehensible by most people”). Whether a plaintiff's allegations “may reasonably be regarded as so extreme and outrageous as to permit recovery is a matter for the court to determine in the first instance.” *Stuto v. Fleishman*, 164 F.3d 820, 827 (2d Cir. 1999); *see also Howell*, 612 N.E.2d at 702 (**“In practice, courts have tended to focus on the outrageousness element, the one most susceptible to determination as a matter of law.”**).

Friedman v Crown Hgts. Urgent Care Clinic, 22-CV-979(EK)(JRC), 2022 WL 17415108, at *2 [EDNY Dec. 5, 2022] (emphasis added)

See also, LeClair v Raymond, 119CV0028BKSDJS, 2020 WL 5027278, at *15 [NDNY Aug. 25, 2020] “New York sets a high threshold for conduct that is ‘extreme and outrageous’ enough to constitute intentional infliction of emotional distress.” *Bender v. City of New York*, 78 F.3d 787, 790 (2d Cir. 1996). Conduct must be **“so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized society,”** *Stuto*, 164 F.3d at 827, and “[w]hether the alleged conduct is sufficiently outrageous enough to satisfy [this element] is a matter of law for a court to decide.” *Baez v. JetBlue Airways*, 745 F. Supp. 2d 214, 223 (E.D.N.Y. 2010). The Court agrees with Moving Defendants that Plaintiff has not alleged conduct that is **“so outrageous in character, and so**

extreme in degree, as to go beyond all possible bounds of decency” in the relevant time period. *Stuto*, 164 F.3d at 827. “

30. So too has this Plaintiff failed to allege or prove conduct that is so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency.

31. Having failed to present any genuine issue of material fact for this Court to consider, Defendants must be granted summary judgment as a matter of fact and law, along with attorney’s fees and sanctions for having to battle for nearly six (6) long years, a history of hate that has no place in these Courts.

WHEREFORE, your Affirmant respectfully asks this Court to grant to Defendant the relief requested in his annexed Order to Show Cause together with such other, further and different relief as to this Court may seem just and proper.

Dated: New Hyde Park, New York
May 4, 2026



JASON M. BARBARA, ESQ.